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CASE NAME: Edward Serrato v. City of La Puente

Defendant City of La Puente's Motion for Summary Judgment

TENTATIVE RULING

The Court DENIES Defendant City of La Puente's Motion for Summary Judgment.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a dangerous condition of public property case. On November 15, 2023, plaintiff Edward Serrato (Plaintiff) filed this action against defendant City of La Puente (City) and Does 1 to 50, alleging causes of action styled as general negligence, premises liability, and dangerous condition of public property under Government Code section 835. On July 22, 2025, Plaintiff filed a Doe amendment substituting Merritt's Garden Center (Merritt's Garden) in place of Doe 1.

On May 27, 2026, City moved for summary judgment. On July 22, 2026, Plaintiff opposed the Motion. On July 31, 2026, the City replied to Plaintiff's Opposition.

LEGAL STANDARD

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. [Citations.]" (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, italics in original and quoting Code Civ. Proc., § 437c, subd. (c).) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. [Citations.]" (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, brackets and internal quotation marks omitted.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established...” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.)

Once the defendant has met that burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Ibid.; see also Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389 (Dore).)

PRELIMINARY ISSUES

City’s Reply misquotes from Menges v. Department of Transportation (2020) 59 Cal.App.5th 13. City substitutes the word “[basis]” in place of the word “bias,” which changes the meaning of the quotation. (Menges v. Department of Transportation (2020) 59 Cal.App.5th 13, 23; Reply, 10:3.) The Court admonishes City to be more cautious going forward when quoting cases.

EVIDENTIARY OBJECTIONS

The Court SUSTAINS City’s objections to Zaretskiy’s Declaration to the extent that paragraph 8 offers the legal conclusion that the walking surface “constituted an unreasonably hazardous pedestrian walking surface.” (Zaretskiy Decl., ¶ 8; Downer v. Bramet (1984) 152 Cal.App.3d 837, 841 [opinion evidence does not “authorize an ‘expert’ to testify to legal conclusions in the guise of expert opinion”].)

The Court OVERRULES City’s remaining objections. First, separate statements are not evidence. Second, Zaretskiy’s opinions regarding the nature, geometry, and progressive development of the pavement deterioration are adequately founded on a review of the record, site inspection, and City’s pavement data. (See generally, Zaretskiy Decl.) Third, the 2018 Pavement Management System Update is the City’s own record and is relevant to the issue of notice. (Notice of Lodgment, Ex. K.) Fourth, Plaintiff’s photographs, produced in discovery and described in Plaintiff’s deposition testimony are admissible for purposes of this Motion. (See Notice of Lodgment, Exs. B-C; Wright Decl., Exs. 1-9.) Fifth, the June 2022 Agenda Report contains a city seal/logo from the City of La Puente, which is sufficient evidence of its authenticity. (Wright Decl., Ex. 9.)

DISCUSSION

Summary of Relevant Material Facts

On December 2, 2022, Plaintiff drove to Merritt’s Ace Hardware, parked in the rear customer lot, and crossed the City-owned alley to enter the store. (UMF 4-6.) After shopping, Plaintiff exited and tripped and fell on cracked pavement while crossing the alley back toward his vehicle. (UMF 7-8.) The weather was clear and the surface was unobstructed. (UMF 8-9.) Within an hour, Plaintiff photographed defects in the alley but did not measure them. (Wright Decl., Ex. 5, 30:14-31:18.) At his first deposition, Plaintiff identified one pothole, i.e., the pothole photographed with his government claim; he later submitted errata identifying a different pothole. (UMF 15-17.) At his second deposition, when asked which photograph depicted the injury-causing defect, Plaintiff answered, “I don’t remember,” while also testifying, “I know exactly what I fell in,” but “there was so many holes there, so I couldn’t exactly pinpoint the exact hole.” (Notice of Lodgment, Ex. C, 108:13-109:4; Wright

Decl., Ex. 6, 130:11-22.)

Plaintiff's government claim stated he "tripped in one of the potholes" while walking from the store to his vehicle and described the alley pavement as having "cracked considerably." (Wright Decl., Ex. 7.) The City's 2018 Pavement Management System Update, prepared by contractor Willdan Engineering, identified the subject alley as segment 12232 and assigned it a Pavement Condition Index of 0 — the lowest score, denoting "failed" pavement — and reported a citywide average index of 43.3, categorized "poor." (Zaretskiy Decl., ¶ 18; Wright Decl., Ex. 8.) City states it received no prior complaints, claims, or lawsuits concerning potholes in this alley before the accident, and that the alley was repaved afterward. (UMF 29-30.)

First Cause of Action – General Negligence

"To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. [Citation.]" (Thomas v. Stenberg (2012) 206 Cal.App.4th 654, 662.) "The elements of a cause of action for premises liability are the same as those for negligence. Accordingly, the plaintiff must prove, a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207.)

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

- (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or
- (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.)

Defendant City of La Puente moves for summary judgment on the grounds that the undisputed material facts establish Plaintiff cannot prove liability as a matter of law. First, City contends the Complaint premises liability on one pothole, and that Plaintiff's "deteriorated alleyway" theory improperly departs from the pleadings.

Second, City argues Plaintiff cannot establish that his injuries were proximately caused by a dangerous condition because he cannot identify the defect on which he fell. City points to Plaintiff's shifting identifications: at his first deposition he identified one pothole, then later submitted errata changing his answer to a different pothole and also referenced a third location. City contends that at his second deposition, Plaintiff testified "I don't remember" which photograph depicts the injury-causing defect. City contends that, absent identification of the specific condition, any finding of causation would rest on speculation, and that summary judgment is proper on this ground alone.

Third, City contends that to the extent plaintiff relies on the second identified pothole, it is trivial as a matter of law. City notes the measured depth of 0.75 to 1.25 inches falls within the range California courts have generally held trivial, and that the accident occurred in daylight, in clear weather, on an unobstructed surface, with no aggravating conditions. Applying the Stathoulis factors, i.e., type and size of the defect, then surrounding circumstances, City contends the defect did not constitute a dangerous condition.

Fourth, City argues that Plaintiff is barred from premising liability on any condition other than the pothole depicted in the photograph submitted with his government claim, i.e., the first pothole. Relying on *Hernandez v. City of Stockton*, City contends that a civil action cannot rest on a factual basis that varies materially from the government claim, and that Plaintiff's apparent shift to a different pothole is a fatal departure from the facts presented to the City.

Fifth and finally, City argues that Plaintiff cannot establish either actual or constructive notice under Government Code section 835.2. City states the Department of Public Works received no prior complaints, claims, or lawsuits concerning potholes in this alley before the accident. City contends the 2018 Pavement Management System report assigned only a general condition grade, was not intended to identify individual defects, and was prepared by a contractor, so it does not establish actual knowledge of the particular dangerous condition. Regarding constructive notice, City cites *Martinez v. City of Beverly Hills* for the proposition that alleys are subject to a less demanding obviousness standard than sidewalks, and argues the defects were not sufficiently obvious to charge it with notice. City contends that a mere failure to maintain does not, without notice, create liability under section 835.

The Court finds City has failed to meet its initial burden of establishing the absence of a triable issue of material fact. First, the Court finds the Complaint is not fairly confined to a single, identified pothole. Although the Complaint refers to "a large pothole," it also alleges the City negligently maintained "the area which was a dangerous condition," and the government claim referred to "one of the potholes" in pavement that had "cracked considerably." (Compl., p. 6; Wright Decl., Ex. 7.) California law does not require a plaintiff who falls in a field of defects to isolate the single one responsible. In *Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559 (*Stathoulis*), the Court of Appeal reversed summary judgment where the plaintiff stepped into one of three adjacent potholes, holding that "the presence of not one, but three, irregularly shaped and sizeable holes ... flanking one another" raised a triable issue as to dangerousness and notice. (*Stathoulis*, supra, 164 Cal.App.4th at p. 569.) Viewing the evidence favorably to Plaintiff, the Court treats the alleged condition as the deteriorated area of the alley for purposes of this Motion. (*Dore*, supra, 39 Cal.4th at p. 389.)

Second, the Court finds a triable issue of fact exists as to causation. Causation in a fall case is ordinarily a question of fact that may be established by circumstantial evidence, and a plaintiff "need not remember her fall to recover damages provided the evidence gives rise to a reasonable and probable inference" that the dangerous condition "was a substantial contributing factor." (*Kaney v. Custance* (2022) 74 Cal.App.5th 201, 217.) Plaintiff's testimony that he tripped in a pothole in a demonstrably deteriorated alley, together with the photographs and expert opinion of progressive pavement deterioration, supplies a circumstantial basis from which a jury could reasonably infer that the deteriorated pavement was a substantial factor in his fall. (See Wright Decl., Exs., 1-4, Ex. 6, 130:11-22; see generally, *Zaretskiy Decl.*) City's contention that Plaintiff cannot prove the dimensions of a specific pothole goes to the weight of the evidence, not to the existence of a triable issue. (*Blue Mountain Enters., LLC v. Owen* (2022) 74 Cal.App.5th 537, 549 ["The court does not weigh evidence, but instead considers whether the evidence creates a triable issue of fact"].)

Third, a condition is not dangerous if the court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk was so minor, trivial, or insignificant that no reasonable person would conclude it created a substantial risk of injury. (Gov. Code, § 830.2.) The analysis proceeds in steps: the court first reviews the type and size of the defect, then considers additional factors such as weather, lighting, visibility, debris, and the plaintiff's knowledge of the area. (*Stathoulis*, supra, 164 Cal.App.4th at pp. 567-568.) The court does not rely on size alone. (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1105.)

Here, the Court finds a triable issue of fact exists. While differences in sidewalk height of approximately one and one-half inches have generally been held trivial without aggravating circumstances, Plaintiff presented evidence of aggravating circumstances similar to those in *Stathoulis*. (*Stathoulis*, supra, 164 Cal.App.4th at p. 567.) For example, Plaintiff presented evidence of "multiple potholes, broken asphalt, cracking, and localized depressions," "abrupt surface irregularities with jagged edges," and evidence that the area "consisted of progressive pavement deterioration rather than an isolated surface defect." (*Zaretskiy Decl.*, ¶¶ 6-8.) The combination of these defects raises a triable issue as to whether the condition presented a substantial risk of injury. (*Stathoulis*, supra, 164 Cal.App.4th at p. 569.)

Fourth, Plaintiff's government claim identified the alley behind the hardware store, described the pavement as "cracked considerably," and stated he "tripped in one of the potholes." (Wright Decl., Ex. 7.) The Complaint likewise alleges a trip-and-fall on a pothole in that same deteriorated alley. (Compl., ¶ Prem.L-1.) Unlike the categorically different conditions in

Hernandez v. City of Stockton (2023) 90 Cal.App.5th 1222, Plaintiff's claim and Complaint rest on the same fundamental facts, i.e., a pothole in this alley's deteriorated pavement. Plaintiff's government claim's reference to "one of the potholes" fairly encompasses the condition alleged.

Fifth and finally, as to notice, actual notice requires actual knowledge of the dangerous condition's existence and constructive notice requires that the dangerous condition was sufficiently obvious and existed long enough such that City should have discovered it exercising due care. (Gov. Code, § 835.2.) City met its burden of establishing that it did not have actual notice of the dangerous condition given the undisputed evidence that the City had not received any complaints about potholes in the alley prior to December 2, 2022 and had not been presented with any claims or lawsuits in the preceding 5 years. (UMF 28-30; Tellez Decl., ¶¶ 5-6; Grunklee Decl., ¶ 4.) Plaintiff produced no evidence to dispute this. However, Plaintiff presented evidence to create a triable issue of fact as to constructive notice. Under the circumstances of this case, the Court does not find that the potholes are, as a matter of law, not a defect that is "of such an obvious nature that [the City], in the exercise of due care, should have discovered the condition and its dangerous character." The Court finds City's 2018 Pavement Management System Update and June 28, 2022 Agenda Reports, both of which gave the subject alley a poor rating before Plaintiff's accident, creates a triable issue of fact as to notice. (Notice of Lodgment, Ex. K; Wright Decl., Ex. 9; Zaretsky Decl., ¶¶ 18.) The Court further finds City's reliance on Martinez v. City of Beverly Hills (2021) 71 Cal.App.5th 508 (Martinez) unavailing. That case involved a single, shallow divot with only incidental foot traffic, whereas Plaintiff has offered evidence of widespread, progressive deterioration across the alley along a route customers of a hardware store would walk. (See Martinez, supra, 71 Cal.App.5th at p. 466; Zaretsky Decl., ¶¶ 11, 14-17.)

Based on the foregoing, the Court DENIES City's Motion for Summary Judgment. City did not move in the alternative for summary adjudication, so the Court's analysis ends here.

CONCLUSION

The Court DENIES Defendant City of La Puente's Motion for Summary Judgment.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.